

damage in the form of personal injury to Plaintiff, property damage to Plaintiff's vehicle, or otherwise. The court denies the motion entirely.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501478	T.G. VS CORONA-NORCO UNIFIED SCHOOL DISTRICT	MOTION FOR ATTORNEYS FEES BY T.G.

Tentative Ruling:

Matter continued to June 15, 2026 in Department 4.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502502	FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC VS VAN DYK TANK LINES, INC.	MOTION FOR LEAVE TO AMEND 2ND AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court grants the motion. It is not necessary for the court to reach the objections as all evidence in support of this motion except the proposed amended complaint and the Killem declaration are irrelevant to whether leave to amend should be allowed.

Factual / Procedural Context:

This action rises out of unpaid invoices for hazardous substance removal. Statewide Emergency Services Inc. ("Statewide") is an emergency hazardous substance removal contractor. (SAC, ¶ 8.) Plaintiff Firstline Environmental Solutions, LLC alleges that on August 15, 2023 it purchased all right, title and interest in the accounts receivable of Statewide under a "Transition Service Agreement," and Plaintiff is thereby entitled to all amounts earned by Statewide as of the date of the agreement and as well as any amounts it earns in the future.

This action concerns nonpayment for services rendered by Statewide from August 8, 2024, through September 25, 2024, for removal of hazardous material fuel spill in the City of Banning, referred to as the "Banning Spill." Statewide had contracted with defendant Van Dyk Tank Lines on the Banning Spill. Defendant Federated Service Insurance Company is Van Dyk's insurer. Plaintiff alleges that Van Dyk's managing agent, Ronald Nuckles (also a Defendant), at the site of the Banning Spill and entered into an oral contract for Statewide's work on the Banning Spill, under the same terms as the previous work performed by Statewide on behalf of Van Dyk on the "I-15 Spill" earlier in the year, including the manner in which payment would be made for Statewide services by Van Dyk's insurer, Federated. Plaintiff further alleges that, on September

09, 2024, Federated's claims supervisor, Mason Adams, spoke with James Kirk, the managing employee and agent for both Statewide and Plaintiff, and manifested his agreement to pay the amount billed as of that date and to negotiate the cost of the disposal portion of the work. After various submissions of invoices and other details, on October 30, 2024, Federated notified Plaintiff for the first time of its refusal to pay the invoices, questioning both Statewide's rates and its means and methods employed for the work performed.

This action is for the outstanding balance on those invoices. In the Second Amended Complaint, plaintiff had alleged causes of action for (1) breach of oral contract, (2) account stated, (3) breach of the covenant of good faith and fair dealing, and (4) quantum meruit. All four causes of action were alleged against all defendants. The defendants (Van Dyk, Nuckles, and Federated) all demurred to the SAC. While that demurrer was pending, plaintiff filed this motion for leave to amend. Before the motion for leave to amend could be heard, the court ruled on the demurrer.

The court's tentative ruling was to overrule the demurrer as to defendant Van Dyk. As to Federated and Nuckles, the tentative indicated that court's intention was to sustain the demurrer as "Plaintiff fails to allege facts demonstrating they are proper parties to this action. Leave should be granted only if Plaintiff is able to state additional facts to cure the defects." The parties requested oral argument and argued the demurrer on May 20. The minute order states in part:

Demurrer by RONALD O NUCKLES, LLC, FEDERATED SERVICE INSURANCE COMPANY, LLC or 2nd Amended Complaint for Breach of Contract/Warranty (Over \$35,000) of FIRSTLINE ENVIROMENTAL SOLUTIONS, LLC sustained.

Demurrer by VAN DYK TANK LINES, INC., LLC on 2nd Amended Complaint for Breach of Contract/Warranty (Over \$35,000) of FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC overruled.

Leave to amend 2nd Amended Complaint for Breach of Contract/Warranty (Over \$35,000) of FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC granted, with 10 days to leave to amend.

- - As to Defendant Federated and Nuckles.

*The demurrer is sustained as to all causes of action alleged against Defendants Federated and Nuckles on the ground of misjoinder (Code Civ. Proc., § 430.10(d)) for reason Plaintiff fails to allege facts demonstrating they are proper parties to this action. **Leave should be granted only if Plaintiff is able to state additional facts to cure the defects.***

- - As to Defendant Van Dyk

The demurrer is overruled as to all causes of action. Plaintiff to file an amended pleading within 10 days, unless the court orders otherwise. (Cal. Rules of Court, rule 3.1320(g).)

Tentative ruling is ordered filed.

(Minute Order dated 5/20/26 [emphasis added].) The motion for leave to amend is now before the court.

Analysis

The standard for allowing amendment of a complaint is well known. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (C.C.P. §473(a).) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Where the proposed amendment would result in little or no prejudice to the opposing party, the “liberal rule of allowance prevails.” (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Denial is only appropriate when “inexcusable delay and probable prejudice to the opposing party’ is shown.” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486.)

“[T]here has developed in this state a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali*, 48 Cal.App.4th 471; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

Leave to amend a complaint can be denied if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486) or if the proposed amendment fails to state a cause of action (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274). Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, and so on. (*Magpali*, 48 Cal.App.4th 471.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa*, 118 Cal.App.3d 486, 490.)

Here there is no trial date set, the case is barely a year old, and opposing parties cannot point to any prejudice as defined in *Magpali* and other cases. To the extent there is a question of whether the proposed TAC states any valid causes of action, “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings. Such proceeding might serve to develop the factual content of the proposed defense and to refine the language in which it is pleaded. Should a general demurrer ultimately be sustained to the proposed defense, the appellate court would at least be apprised of the ground on which the proposed defense was rejected [Citation] and thus be in a position to focus its attention on the appropriate considerations on review.” (*California Casualty*, 173 Cal.App.3d 274, 281; see also *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Defendants do claim procedural defects in the proposed TAC and various failures to comply with Cal. Rules of Court, rule 3.1324. These provisions require that the moving party provide a copy of the proposed pleading, identify the new allegations proposed, and provide a declaration describing when the new facts were discovered and why the request for amendment was not made earlier. Defendant contends that the proposed TAC doesn't include the exhibits supposedly attached to the TAC or a sufficient declaration.

The copy of the TAC attached to the motion on file with the court does include exhibits, and the Kellam declaration attached to the motion does describe how some of the new facts alleged were uncovered during discovery. (Kellem declaration, ¶¶3-6.) This is sufficient in light of the general public policy in favor of allowing amendments, especially as the court had already granted leave to amend when the demurrer was sustained on May 20; enforcement of other procedural requirements for a motion for leave to amend would be unnecessary here when the ruling on the demurrer allowed the plaintiff to amend the complaint without any further showing.

The motion is granted.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502741	BACA VS ORANGECREST PONY BASEBALL, INC.	MOTION FOR SANCTIONS

Tentative Ruling:

Summary of Ruling: The Court denies the motion.

Factual / Procedural Context

On June 10, 2025, Plaintiff Krystal Baca, *in pro per* ("Plaintiff") filed a Complaint against Defendants Orangecrest Pony Baseball, Inc. ("Orangecrest"), Aria Zolfaghari, Jeremy Langley, Sarah Langley, Delia Lopez, Delores Todorovski, Michael Penn, John Blanco, and Thomas Boyer (together "Defendants") asserting causes of action for temporary injunction, permanent injunction, declaratory relief, accounting, negligence, fraud, misrepresentation, emotional distress, and intentional infliction of emotional distress ("IIED"). Plaintiff alleges that Orangecrest is a California public benefit corporation that was suspended by the Franchise Tax Board ("FTB") and declared delinquent with the Attorney General's Charitable Trust Registry, but continued to operate, collect registration fees, and solicit public sponsorships. The individual Defendants acted as de facto directors without valid elections, in violation of the nonprofit's own bylaws. The Department of Justice denied Orangecrest's 2025 raffle registration due to chronic noncompliance, but Defendants continued to conduct raffles and failed to report the proceeds to the IRS; failed to report snack bar revenue, raffle income, board member compensation, umpire payments, or field permit costs; employed umpires, including minors, without providing workers compensation coverage;